

COMMISSION IMPLEMENTING DECISION

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COMMISSION IMPLEMENTING DECISION

of 12 November 2013

as regards a Union financial aid towards a coordinated control plan for antimicrobial resistance monitoring in zoonotic agents in 2014

(notified under document C(2013) 7289)

(2013/653/EU)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EC) No 882/2004 of the European Parliament and of the Council of 29 April 2004 on official controls performed to ensure the verification of compliance with feed and food law, animal health and animal welfare rules (1), and in particular Article 66 thereof,

Having regard to Regulation (EU, Euratom) No 966/2012 of the European Parliament and of the Council of 25 October 2012 on the financial rules applicable to the general budget of the Union and repealing Council Regulation (EC, Euratom) No 1605/2002 (2) (the Financial Regulation), and in particular Article 84(2) thereof,

Whereas:

(1)

Regulation (EC) No 882/2004 lays down, among others, procedures governing the financial support from the Union to conduct measures necessary to ensure the application of Regulation (EC) No 882/2004.

(2)

Directive 2003/99/EC of the European Parliament and of the Council (3) provides that Member States shall ensure that monitoring provides comparable data on the occurrence of antimicrobial resistance (AMR) in zoonotic agents and, in so far as they present a threat to public health, other agents.

(3)

Article 7(3) of this Directive provides that the Commission shall set out detailed rules for the implementation of monitoring of antimicrobial resistance.

(4)

Several scientific opinions published by the European Food Safety Authority and reports published by the World Health Organization (WHO), the Food and Agriculture Organization of the United Nations (FAO) and the World Animal Health Organisation (OIE) call for a harmonised monitoring of antimicrobial resistance (AMR) in zoonotic and commensal bacteria, present in animals or food. The Commission therefore laid down detailed rules for harmonised monitoring and reporting of AMR in accordance with Article 7(3) of Directive 2003/99/EC to be carried out by the Member States in Commission Implementing Decision

2013/652/EU (4).

(5)

This harmonised monitoring must be performed in accordance with Article 3 of Regulation (EC) No 882/2004 ensuring that official controls are carried out regularly, on a risk basis and with appropriate frequency, so as to achieve the objectives of that Regulation taking account of identified risks associated with animals, feed or food, feed or food businesses, the use of feed or food or any process, material, substance, activity or operation that may influence feed or food safety, animal health or animal welfare.

(6)

In order to facilitate smooth and fast application of this monitoring, the Union should financially support the Member States which carry out this monitoring at the most appropriate level as provided for in Article 66(1)(c) of Regulation (EC) No 882/2004.

(7)

In accordance with Article 84 of the Financial Regulation and Article 94 of the Commission Delegated Regulation (EU) No 1268/2012 (5), the commitment of expenditure from the Union budget shall be preceded by a financing decision setting out the essential elements of the action involving expenditure and adopted by the institution or the authorities to which powers have been delegated by the institution.

(8)

The measures eligible for Union financial support are defined within the current Implementing Decision.

(9)

The financial contribution from the Union should be granted subject to the condition that the tests and analyses have been carried out in accordance with the present Implementing Decision and with Implementing Decision 2013/652/EU and that the competent authorities supply all the necessary information within the time limits laid down in the present Implementing Decision.

(10)

For reasons of administrative efficiency all expenditure submitted for a financial contribution by the Union should be expressed in euro and the conversion rate for expenditure in a currency other than the euro should be set,

HAS ADOPTED THIS DECISION:

Article 1

Subject matter

The Union shall contribute to the costs incurred by the Member States relating to the application of the harmonised antimicrobial resistance monitoring in accordance with Implementing Decision 2013/652/EU on samples of poultry collected between 1 January and 31 December 2014, with a total maximum amount of EUR 1 407 585 to be financed from line 17 04 07 01.

Article 2

Eligible costs

The Union financial contribution:

(a)

shall be at a rate of 50 % of the costs incurred by each Member State to implement the monitoring referred to in Article 1 of Implementing Decision 2013/652/EU and performed by the competent authority;

(b)

shall not exceed the following:

(i)

EUR 8 for staff costs per caecal sampling;

(ii)

EUR 11 per E. coli isolation and identification;

(iii)

EUR 21,5 per Campylobacter isolation and identification;

(iv)

EUR 15 per antimicrobial susceptibility testing (AST) of each Salmonella or E. coli isolate;

(v)

EUR 15 per AST of each Campylobacter isolate;

(vi)

EUR 17,5 per characterisation and classification of Salmonella or E. coli isolates showing resistance to third-generation cephalosporins and meropenem;

(vii)

EUR 22 per Salmonella serotyping;

(viii)

the maximum amounts indicated in Annex I;

(c)

only the costs indicated in Annex II shall be eligible for contribution.

Article 3

Eligibility rules

1. The Union contribution is subject to the following conditions:

(a)

by 31 May 2015, the Member States have provided to the European Food Safety Authority who was mandated for this task by the European Commission, with a technical report covering at least the information requested in Part B of the Annex to Implementing Decision 2013/652/EU;

(b)

by 31 May 2015, the Member States have provided the Commission, in electronic form, with a financial report according to the format laid out in Annex III to this Decision. In order to be eligible for funding, the expenditure incurred must have been paid before the submission of the claim. The supporting documents evidencing all the expenditure referred to in the financial report shall be sent to the Commission on request only.

2. The Commission may reduce the amount of the contributions referred to in Annex I in cases where the conditions referred to in paragraph 1 of this Article are not met, having regard to the nature and gravity of the non-compliance and to the potential financial loss for the Union.

Article 4

Conversion rate for expenditure

For reasons of administrative efficiency all expenditure submitted for a financial contribution by the Union should be expressed in euro. When a Member State's expenditure is in a currency other than euro, the Member State shall convert it into euro by applying the most recent exchange rate set by the European Central Bank prior to the first day of the month in which the application is submitted by the Member State concerned.

Article 5

This Decision constitutes a financing decision in the meaning of Article 84 of Regulation (EU, Euratom) No 966/2012.

Article 6

This Decision is addressed to the Member States.

Done at Brussels, 12 November 2013.